MEMORANDUM OF AGREEMENT (MOA)
(Institutional Development and Innovation Grants)

KNOW ALL MEN BY THESE PRESENTS:

This Memorandum of Agreement is executed by and between:

The **COMMISSION ON HIGHER EDUCATION (CHED)**, a government regulatory agency of the national government organized and established under the Republic Act (RA) no. 7722 otherwise known as the "Higher Education Act of 1994", with principal office address at HEDC Building. C.P. Garcia Avenue, U.P. Campus, Diliman, Quezon City, represented herein by **J. PROSPERO E. DE VERA III, DPA**, in his capacity as Chairperson, hereinafter referred to as the **"CHED"**;

-and-

The **Partido State University,** a higher education institution, with principal office at **San Juan Bautista Street, Goa, Camarines Sur,** duly represented herein by, **RAUL G. BRADECINA, PhD**, in their capacity as **President,** hereinafter referred to as the **"HEI"**.

CHED and **HEI** are hereinafter collectively referred to as **"PARTIES"**

WITNESSETH

WHEREAS, Republic Act (R.A.) No. 7722 provides that it is the responsibility of the State to (1) protect, foster and promote the right of all citizens to affordable quality education at all levels, and (2) take appropriate steps to ensure that education shall be accessible to all. It further mandates CHED to (1) formulate and recommend development plans, policies, priorities and programs on higher education and research, and (2) identify, support and develop potential centers of excellence in program areas needed for the development of world-class scholarship, nation building and national development.

WHEREAS, the **CHED** is mandated by RA 10533 or the "Enhanced Basic Education Act of 2013" and its Implementing Rules and Regulations to help ensure a smooth transition to the K to 12 system by formulating appropriate strategies and mechanisms, which may cover changes in physical infrastructure or organizational and structural concerns, and partnerships between the government and other entities, along with ensuring the long-term viability of HEIs, and the alignment of higher education with the new curriculum in basic education;

WHEREAS, the **CHED** provides funding for higher education institutions (HEIs) to ensure their long-term sustainability; strengthen their capacity to respond and remain relevant to regional, national and global priorities; and enhance the quality of their educational programs and services.

WHEREAS, the **CHED** issued the **"Revised Guidelines for the CHED-Initiated Projects under the Institutional Development and Innovation Grant Program for Higher Education Institutions"** through CHED Memorandum Order (CMO) no. 17, series of 2021 on 07 October 2021;

WHEREAS, the IDIG program will support HEIs that will maximize the opportunities of the Fourth Industrial Revolution to transform into smart campuses thereby ensuring a

smooth transition from enhanced basic education, and the continuity of learning through effective implementation of flexible learning as the appropriate pedagogical approach in a disruptive world.

WHEREAS, the current iteration of the CHED-initiated IDI Grants shall be awarded to HEIs to improve their instructional facilities/laboratories, establish/upgrade their multimedia centers to develop instructional materials, establish/upgrade flexible learning hubs or internet rooms for students, upgrade connectivity/campus area network, or establish/upgrade learning management systems.

WHEREAS, the **CHED** through **Resolution no. R006-2021** *(Annex A)* approved the project titled **Establishment of Partido State University Reading Center** (the "Project") amounting to **Two Million Nine Hundred Sixty Five Thousand Eight Hundred Fifty Six Pesos and Forty Centavos Only (PhP 2,965,856.40)** for implementation by the **HEI**; and

WHEREAS, the **HEI** is ready, willing and able to implement its approved project and by acceptance of this grant, the HEI agrees to comply with existing and relevant government laws, rules, regulations, policies and procedures of CHED.

NOW, THEREFORE, for and in consideration of the foregoing premises, the parties hereto hereby agree, as they do hereby agree, to fulfill the following terms and conditions of the grant:

A. ROLES AND RESPONSIBILITIES OF THE PARTIES

1. The **CHED** shall:
   1.1. Through the funds available in the Higher Education Development Fund (HEDF) provide funding assistance to the HEI in the amount of **Two Million Nine Hundred Sixty Five Thousand Eight Hundred Fifty Six Pesos and Forty Centavos Only** (PhP 2,965,856.40) for the implementation of the Project entitled **"Establishment of Partido State University Reading Center"**;

   1.2. Through its designated grant secretariat, see to it that funds provided to the HEI shall be used properly and for the intended purposes specified; and
   1.3. Conduct monitoring and evaluation of the implementation of the project

2. The **HEI** shall:
   2.1. Ensure proper implementation of the project;
   2.2. Ensure the procurement of all materials, equipment, and services indicated in the project shall abide by **R.A. No. 9184** or the **"Government Procurement Reform Act"** and all pertinent laws and government rules. The HEI must also secure and provide CHED with relevant market surveys and price quotations.
   2.3. Properly utilize the funds provided by **CHED** and see to it that there are used for the purposes for which the same are intended, in accordance

with the project proposal and work and financial plan (WFP) *(Annex B)* subject to the pertinent accounting and auditing rules and regulations;

2.4. Report promptly to CHED the occurrence of any event or condition which might delay or prevent the timely completion of the project embraced herein, specifying in writing the amount of time involved, the causes of the delay, its subsequent implications on the entire timetable, work schedule, and budget of the project, and the interventions that the **HEI** shall employ to address said event or condition;

2.5. Complete the project within a maximum of twenty-four (24) months or two (2) years with no further extension.

2.6. Issue an Official Receipt (OR) for every amount received from **CHED**;

2.7. Deposit the funds received from **CHED** with any government authorized depository bank nearest the program site;

2.8. Separately keep and maintain all necessary accounting ledgers/records for the project which shall be voluntarily submitted whenever required and subjected to monitoring and evaluation of the CHED's authorized representative/s and furnish the certified true copies (CTC) of all required documents;

2.9. Adhere with the Project Proposal and WFP submitted to CHED as basis for the manner of implementation and delivery of the project;

2.10. Submit to **CHED** Semestral Progress Reports, and a Terminal Report within sixty (60) days after the completion of the project, indicating the accomplishment of deliverables as stated in its project proposal, WFP and Gantt Chart;

2.11. Attend the conduct of the monitoring activities (face-to-face or virtual) to validate the submitted progress report. Observations of the monitoring team shall be provided to the HEI. If there are issues to be addressed, the HEI shall submit within a prescribed period the actions to be taken;

2.12. Submit a liquidation report to **CHED**, certified correct by the HEI's accountant, approved by the head of the institution, and duly received by the institution's resident Commission on Audit (COA) Office for SUCs/LUCs or verified by an external auditor for Private HEIs, within sixty (60) days after the completion of the project;

2.13. Return to **CHED** all unused balances of the project funds upon completion of the project within forty-five (45) but not more than sixty (60) calendar days, pursuant to **Executive Order (EO) no. 338, series of 1996** also known as the **"Directing the Deposit of Cash Balances to the National Treasury"**;

2.14. Adhere to the prescribed accounting entries for booking up property/equipment purchased out of project funds;

2.15. Abide by all provisions of CHED Memorandum Order No. 17, series of 2021 or the "Revised Guidelines for the CHED-Initiated Projects under the Institutional Development and Innovation Grant Program for Higher Education Institutions".

B. OWNERSHIP OF PURCHASED EQUIPMENT AND FACILITIES

CHED reserves the right to ownership over the purchased equipment and facilities subject under the grant until full liquidation by the **HEI** is completed. Transfer of ownership of the said equipment and facilities in favor of the **HEI** shall ensue upon issuance of an Invoice Receipt of property by the **CHED**, and the execution of a Deed of Donation between the **PARTIES,** or completion of any other required accounting and audit procedure for the purpose.

C. GRANT TERMINATION

1. Basis for Termination

A grant may be terminated by the **CHED** for cause. Cause for termination of the **CHED** includes:

1.1. Refusal or failure of the **HEI** to comply with the policies and guidelines herein stated, and with any provision of the MOA between CHED and the HEI grantee;

1.2. Misrepresentation or fraud by the **HEI** or any of its personnel serving as a project lead/point person;

1.3. Failure to complete the project within the approved duration of the grant;

1.4. Failure to comply with the inspection of report within the prescribed period;

1.5. Availment of another grant to fund the same project;

1.6. Use of funds for purposes other than those indicated in the approved project proposal and WFP;

1.7. Violations covered by the Sanctions and Restrictions as provided for in CMO No. 17, Series of 2021, Re: "Revised Guidelines for the CHED-Initiated Projects under the Institutional Development and Innovation Grant Program for Higher Education Institutions";

1.8. Other acts may be considered by the Commission as inimical to the interest of the Republic of the Philippines and those that adversely affect the integrity of the CHED-Initiated IDIG program.

2. Effect of Grant Termination

Termination carries with it disqualification from receiving any future grants from the **CHED** for two (2) consecutive years. Termination of the grant may be initiated by the Commission upon demand and failure of the HEI to address the basis for termination. An awarded project which is prematurely terminated will be subject to the same requirements regarding audit and submission of reports.

The **CHED** may also take administrative action including, but not limited to, the imposition of a payment obligation for all financial privileges received under the CHED-Initiated IDIG program.

3. Termination Agreement or Notice

CHED may, based on evidence of failure to comply with the terms of the grant agreement, issue a notice of intent to terminate the grant agreement. The notice of intent to terminate has the force and effect extending or modifying the conditions of the suspend order. Any modification of the condition of the suspend order shall be shown in the notice and discussed with the HEI. The CHED shall give not less than ten days written notice to the HEI of intent to terminate the grant in whole or in part.

After the HEI has been notified and / or afforded opportunity for discussion, the Director-in-charge may request authorization from the Commission en banc. If the CEB concurs in the termination action, the termination notice will be forwarded to the HEI. The termination notice shall establish the effective date of the termination of the grant and the amount and date of payment of any sums due either party.

D. PENALTY CLAUSE

The agreement shall be implemented as agreed upon and in accordance with the terms and conditions stipulated herein and in CMO No. 17, series of 2021. Failure on the part of either party to comply with the provision/s of this Agreement will warrant its discontinuance and/or administrative, civil, and/or criminal actions against responsible officers and employees of the Erring Party.

The **CHED** reserves the right to terminate the grant and take administrative action including, but not limited to, the imposition of a payment obligation for all financial privileges received under the CHED-Initiated IDIG program if the provisions stipulated in CMO No. 17, series of 2021 are violated.

E. SEPARABILITY CLAUSE

If one or more provisions contained herein shall be held invalid, illegal, or unenforceable in any respect and for any reason, the remaining provisions shall remain valid, legal, and enforceable.

F. DOCUMENTS COMPRISING THIS DOCUMENT

All appendages hereto attached are hereby expressly made an integral part of this agreement by reference, excluding inconsistencies with any/all part, terms, and conditions contained in this Memorandum of Agreement.

G. EFFECTIVITY OF THE AGREEMENT

This MOA shall take effect upon the release of the funds to the **HEI** for the project implementation and shall be in effect for a maximum of twenty-four **(24)** months from the date of receipt of the funds by the **HEI. NO extension** shall be given to the HEI beyond this project duration.

H. OTHER TERMS AND CONDITIONS

1. Any communication under this MOA must be in writing and delivered by registered mail, electronic mail, or facsimile to the respective parties at their addresses below:

COMMISSION ON HIGHER EDUCATION
Office of the Chairperson
4th Floor, HEDC Building, CHED Central Office
C.P. Garcia Avenue, Diliman, Quezon City

Copy furnished:
MARY SYLVETTE T. GUNIGUNDO, Ph.D.
OIC- Director IV
Office of Planning, Research, and Knowledge Management
Commission on Higher Education
Ground Floor, HEDC Building, CHED Central Office
C.P. Garcia Avenue, Diliman, Quezon City
Telefax: (02) 8441-11-49 / 8441-11-69
Email: idig.k12oprkm@ched.gov.ph

Partido State University
Office of the President
Address: San Juan Bautista, Goa, Camarines Sur
Tel: (054) 453-1811
Facsimile: (054) 453-1811
Email: sheila.amoroso@parsu.edu.ph

Copy furnished:
SHEILA E. AMOROSO
Office of Internship Coordinator
Address: Partido State University Goa, Camarines Sur
Contact Number: 09204541972
Email: sheila.amoroso@parsu.edu.ph

2. If there is a change in the contact details above, both **PARTIES** must notify the other, and this identification is to be deemed duly given or made when delivered and acknowledged by the recipient at such address, electronic mail address, or facsimile number stated above;

3. The provisions of this Agreement may be amended at any time by the mutual consent in writing of both **PARTIES**;

4. Neither of the **PARTIES** may use the name or the logo of the other without the prior written consent of the other Party. Neither Party shall disclose to any third party that the **PARTIES** have a legal relationship until there is a signed contract in place;

(signature page as follows)

IN WITNESS WHEREOF, the parties hereto, through their respective representatives, have hereunto set their hands this ___ day of _____, 2021 at Quezon City, Philippines.

COMMISSION ON HIGHER EDUCATION
"CHED"

By:

J. PROSPERO E. DE VERA III, DPA
Chairman

Partido State University

"HEI"

By:

RAUL G. BRADECINA, PhD
President

Signed in the Presence of:

MARY SYLVETTE T. GUNIGUNDO, Ph.D.
OIC-Director IV, OPRKM
Commission on Higher Education

SHEILA E. AMOROSO
Project Leader
"Establishment of Partido State University Reading Center"

CERTIFIED AS TO AVAILABILITY OF FUNDS:

₱ 2,965,876.40

MYRA PAZ B. MANALO
Chief Accountant, HEDFS

Obl 03 104309 - 2021 12 0 1200
12-21-2021

ACKNOWLEDGEMENT

REPUBLIC OF THE PHILIPPINES)
QUEZON CITY) *S.S.*

BEFORE ME, a Notary Public, for and in QUEZON CITY, this DEC 29 2021 day of _____, _____, personally appeared:

	Valid ID/ Passport no.	*Issued on/ Issued at*
J. PROSPERO E. DE VERA III, DPA *Chairman* *Commission on Higher Education*	CO-0394	29 January 2018 CHED Central Office, Quezon City
RAUL G. BRADECINA, PhD *President* *Partido State University*	P7648090B	12 September 2021 DFA Legazpi

Known to me, to the same person(s) who executed the foregoing instrument and who acknowledged to me that the same is their free and voluntary act and deed, and that of the institutions respectively represented.

The foregoing instrument refers to a Memorandum of Agreement (MOA) consisting of _____ pages, including the page in which this Acknowledgement is written, signed by the parties, including their instrumental witnesses on each and every page thereof and sealed with my notarial seal.

WITNESS MY HAND AND SEAL, on the date and place above written.

Doc No. 84.
Page No. 17.
Book No. XC
Series of 2021.

ATTY. ELISEO S. CALMA, JR.
Notary Public for Q.C. Until Dec. 31, 2021
Adm. Matter No. NP-067 (2020-2021)
PTR No. 0694702-D/01-04-2021 Q.C.
IBP No. 141058/01-04, 2021
Roll No. 50188
NOTARY PUBLIC
MCLE COMP. NO. VI-0012817 Valid Until 4-14-22
20 Kamagong St., Sapamanna Vil. East Fairview Q.C.
TIN No. 138-541-197-000